

Charter of Apex Kingdom

Preamble

Whereas, the Apex Kingdom is established as an autonomous **tribal nation** and a **religious society**, devoted to the spiritual and temporal well-being of its community;

Whereas, the Founder of Apex Kingdom, *Matthew McCluster* (hereinafter "the Founder"), seeks to unify ecclesiastical authority, secular governance, charitable trust, and nonprofit purpose into one cohesive legal entity for the glory of God and the benefit of the people;

Whereas, the Apex Kingdom asserts its inherent right to self-determination and self-governance as an indigenous and faith-based community, consistent with the principles of international and federal law that protect tribal sovereignty and religious freedom ;

Now therefore, by virtue of the Founder's authority and the collective will of the community, this **Charter of Apex Kingdom** is ordained as the supreme governing instrument of the Apex Kingdom, to remain in force for the guidance of present and future generations.

Article I – Establishment and Nature of the Apex Kingdom

1. **Sovereign and Ecclesiastical Entity:** The Apex Kingdom (hereinafter "the Kingdom") is hereby formally **established** as a sovereign tribal government and an ecclesiastical religious society in unity. It shall function as a single integrated entity that combines:
 - **Secular Governance:** The powers of a civil government exercising jurisdiction over the Kingdom's community and affairs.
 - **Ecclesiastical Authority:** The authority of a church or religious order governing the spiritual doctrine, worship, and internal religious practices of the community.
 - **Trust and Nonprofit Functions:** The structure of a charitable trust and unincorporated nonprofit association, holding all assets, properties, and interests **in trust** for the benefit of its members and beneficiaries (as defined herein), and operating on a not-for-profit basis in furtherance of religious and communal purposes.
2. **Legal Form and Capacity:** The Kingdom is an **unincorporated, faith-based sovereign trust and body politic**. It is not chartered under any state corporate law and is **not subject to state or federal corporate statutes or reporting requirements** . As a 508(c)(1)(A) organization under the United States Internal Revenue Code, the Kingdom is a **tax-exempt religious entity** by virtue of its church status, enjoying a mandatory exception from government restrictions and reporting obligations that apply to secular entities . The Kingdom has the capacity to **sue and be sued** (consistent with its

sovereign immunity provisions herein), to acquire and hold property, to enter into contracts, and to carry out all functions of a governing nation and church.

3. **Mission and Purpose:** The core purpose of the Apex Kingdom is to **protect and uplift** its people – spiritually, culturally, and materially. This includes preserving the free exercise of religion, promoting the moral and social welfare of the community, **stewarding resources in trust** for future generations, and defending the inherent rights of the Kingdom and its members against all threats. The Kingdom shall engage in charitable, educational, and religious activities in accordance with its sacred beliefs and the common good, and shall do so in harmony with both **God's law** and the universally recognized principles of human rights and indigenous rights .

Article II – Membership and Beneficiaries

1. **Community Composition:** The Apex Kingdom's community is composed of individuals and families who are **members of or affiliated with the Shiloh Baptist Church** and its sister congregations and ministries (hereinafter collectively the "Church Body"), together with any other persons who freely unite with the Kingdom in accordance with its membership criteria. The Kingdom recognizes these faithful congregants as the *kin* and core of its tribe — **beneficiaries** of the Kingdom's trust and citizens under its governance — united by ties of faith, fellowship, and shared purpose.
2. **Beneficiary Status:** All members of the Church Body, by virtue of their voluntary association and shared faith, are **deemed beneficiaries** of the Apex Kingdom's tribal and governmental structure. The Kingdom, through this Charter and its governing authorities, holds its powers, lands, and assets **in trust for the spiritual and material benefit** of these beneficiaries. This means that the **rights, services, and protections** established by the Kingdom are **for their welfare** – including the protection of religious freedom, access to communal resources, and participation in self-governance. Nothing in this Charter shall be construed to coerce participation or allegiance; rather, the Kingdom **extends its sheltering aegis** to the Church Body as a mutual and non-predatory arrangement, founded on common belief and the free will of each individual.
3. **Citizenship and Membership Criteria:** The Kingdom shall maintain a roll or record of its members (citizens). **Initial membership** shall consist of the Founder and those persons within the Church Body who affirmatively consent to alignment with the Kingdom as of the effective date of this Charter (or who have been historically regarded as part of the tribal community). Henceforth, membership may expand to include new congregants or affiliates who are **adopted or acknowledged** into the community pursuant to procedures ordained by the Founder or his delegates. A **governing document or registry** may be maintained to record membership criteria and the inclusion of members, in alignment with federal acknowledgment guidelines requiring a clear statement of community and criteria . Members may withdraw their membership in the Kingdom freely, and no penalties or loss of secular rights shall ensue from such decision (aside from cessation of any internal benefits or roles).

4. **Autonomy of Church Affiliates:** The affiliated churches (including Shiloh Baptist Church and any sister congregations) remain free to manage their purely ecclesiastical matters (doctrine, sacraments, worship services) according to their own convictions. The Kingdom's relationship with them is intended to be supportive and protective, not infringing on church theology or discipline. Instead, the Apex Kingdom provides an **additional layer of legal and communal protection** to those churches and their members, asserting rights on their behalf when dealing with external authorities (e.g., invoking RLUIPA to protect land use for religious gatherings). In all spiritual matters, the conscience of the individual and the autonomy of the Church Body are respected as paramount.

Article III – Sovereignty and Jurisdiction

1. **Inherent Sovereignty:** The Apex Kingdom declares that it is a sovereign entity by natural right, deriving its authority from **the Creator and the consent of its community**, not from any delegation by other governments. As such, the Kingdom possesses all **inherent powers of self-government** that have neither been surrendered nor abridged. This includes the authority to determine its own government, enforce its laws, regulate the conduct of its members, and manage its internal affairs without undue outside interference . The Kingdom's sovereignty exists **from time immemorial** (in a spiritual and ancestral sense) and in the modern era has been organized formally as of October 30, 2010 (the effective date herein).
2. **Territorial Jurisdiction:** The jurisdiction of the Apex Kingdom extends to:
 - **Persons:** All members/citizens of the Kingdom, wherever located, particularly in matters concerning internal governance, religious affairs, and disputes among the community.
 - **Lands:** Any and all lands which now or in the future are **owned by, entrusted to, occupied by, or under the use of the Kingdom** or its members. This includes church grounds, community centers, or properties held for communal purposes, and any land that may be acquired, reclaimed, or recognized as territory of the Kingdom through future actions.
 - **Subject Matter:** All **civil, criminal, and ecclesiastical matters** arising within the Kingdom's community or on its lands, to the fullest extent permitted by law. The Kingdom's secular law shall govern civil relations and minor criminal or disciplinary issues among members, while its ecclesiastical law shall govern doctrinal, spiritual, and church-related matters.
3. **Maximum Extent of Jurisdiction:** The Kingdom shall seek to exercise **the broadest jurisdiction allowed by applicable law** in order to protect its integrity and independence. In ecclesiastical matters, the Kingdom's authority is **exclusive and final** (courts are expected to abstain from intervening in purely religious disputes under the First Amendment's church autonomy doctrine). In secular matters involving the Kingdom or its members, the Kingdom asserts its right to adjudicate and regulate such matters internally to the greatest degree possible, recognizing that external authorities may have concurrent jurisdiction only where mandated by overriding law. **All ambiguities** as to

jurisdiction shall be resolved in favor of the Kingdom's authority and the **broad protection of religious exercise**, consistent with Congress's directive that such freedoms be protected to the maximum extent permitted .

4. **Relationship with U.S. Law:** The Apex Kingdom shall abide by the laws of the United States and the several States to the extent that such laws are **not inconsistent with the Kingdom's supreme law, rights, and purposes**. Nothing in this Charter authorizes any illegal act or intent to violate valid laws; rather, this Charter is intended to enable the Kingdom to exist and operate **within the framework of the law** while asserting all possible exemptions, accommodations, and **jurisdictional immunities** available to tribal governments and religious organizations. The Kingdom's sovereignty as declared herein is meant to **coexist within the dual sovereignty framework** of the United States, akin to the status of federally recognized tribes, even as the Kingdom pursues formal recognition of its status.

Article IV – Powers of the Apex Kingdom

The Apex Kingdom, as a combined tribal and ecclesiastical sovereign, **possesses and may exercise all powers** of government, faith institution, and trust administration necessary to fulfill its purposes. These powers include, but are not limited to, the authority to:

1. **Self-Governance:** Adopt laws, regulations, and policies for the governance of the Kingdom's affairs and the conduct of persons within its jurisdiction. This encompasses establishing moral codes, community rules, ordinances, and ecclesiastical directives consistent with the Kingdom's values.
2. **Legislation:** Legislate on all rightful subjects of legislation concerning the welfare of the community, including matters of health, education, crime, civil justice, zoning of communal land, family relations, and any other area affecting the Kingdom's members or interests.
3. **Administration:** Create and administer departments, ministries, or committees (whether secular or religious in nature) to provide services and manage day-to-day operations. For example, the Kingdom may establish an education board for its members, a charitable outreach ministry, or a land management office to oversee properties.
4. **Judiciary and Dispute Resolution:** Establish tribunals, **courts of justice**, or other mechanisms for resolving disputes and enforcing laws. This shall include:
 - **Ecclesiastical Courts** to adjudicate matters of church discipline, doctrine, or disputes between members that pertain to faith or church governance (in which secular courts lack jurisdiction by law).
 - **Secular Courts or Forums** to hear civil disputes (such as contract issues, family or domestic matters among members, etc.) and minor criminal offenses involving members on Kingdom lands or within the community. The Kingdom's courts may base their judgments on the Kingdom's laws, traditional principles, equity, and, where appropriate, biblical or natural law principles.
 - The Kingdom's judiciary shall operate in a fair and impartial manner, respecting due process, and decisions of Kingdom courts shall be binding within the

community. Members by joining the Kingdom may consent to utilize these internal mechanisms for dispute resolution whenever feasible.

5. **Law Enforcement:** To maintain peace and order, the Kingdom may establish a community security service or marshals to enforce its laws and protect people and property on its lands. Such officers (if appointed) shall coordinate with outside law enforcement when required, but primarily serve the Kingdom's interest in public safety.
6. **Taxation and Contributions:** Levy dues, tithes, or assessments on members or activities within its jurisdiction for the limited purpose of funding the Kingdom's operations and community needs. (Any such levies shall be reasonable and in keeping with the nonprofit nature of the Kingdom; nothing herein implies any authorization to tax beyond what supports communal and religious aims.)
7. **Economic and Corporate Powers:** Charter or oversee tribal enterprises, nonprofits, or ministries. The Kingdom may form corporations or companies under its own laws (or under state law if advantageous, without waiving sovereignty) to engage in economic development, hold property, or conduct any lawful business that supports the community. Profits from any Kingdom enterprise shall be utilized for the benefit of the members or the church ministry, and not for private gain.
8. **Financial Management:** Receive and manage funds (such as tithes, donations, grants) and property. The Kingdom can open and operate bank accounts, trust funds, and other financial instruments. All assets of the Kingdom, whether tangible or intangible, are considered **community property held in trust** by the Kingdom's leadership on behalf of the beneficiaries (members). The Kingdom shall ensure proper stewardship of finances in line with its charitable and religious mission.
9. **Property and Land:** Acquire (by purchase, gift, devise, or other legal means), own, use, and dispose of real and personal property. This includes managing any sacred sites, church buildings, communal lands, or future land acquisitions. The Kingdom may hold title to property in its own name or via a designated trust, and may also seek to have certain lands taken into trust by the federal government for the Kingdom if federal recognition is achieved.
10. **Treaties and External Relations:** Enter into agreements, partnerships, or **treaties** with other governments, tribes, churches, or organizations. For example, the Kingdom may negotiate memoranda of understanding with local governments, compacts with other indigenous groups, cooperative agreements with church associations, or service contracts with agencies – provided that any such external agreement does not surrender the Kingdom's autonomy and is approved by the Founder or his authorized representative.
11. **Cultural and Religious Affairs:** Regulate and promote the cultural heritage and religious life of the community. The Kingdom can organize religious services, ceremonies, and cultural events; protect and teach traditional practices; and operate religious institutions such as schools, seminaries, or training programs. The Kingdom affirms the right to **freely practice and revive its religious traditions and customs**, as recognized in international law .
12. **General Welfare:** Do all things necessary or proper to promote the health, education, peace, safety, and general welfare of the Kingdom and its members. This broad

“necessary and proper” power shall be interpreted liberally to enable the Kingdom’s self-sufficiency and prosperity, so long as actions taken are consistent with this Charter and the higher laws it acknowledges.

Article V – Territory and Land Claims

1. **Ancestral and Future Lands:** The Apex Kingdom acknowledges a sacred connection to the land and holds that certain lands are **integral to its identity and future**. While this Charter does not enumerate specific territorial boundaries at present, it deliberately preserves the Kingdom’s **flexibility to assert land rights or claims in the future**. The Kingdom reserves all rights to **reclaim, restore, acquire, or govern lands** with which its people have historical, spiritual, or cultural ties, at such time and by such means as may be appropriate.
2. **Current Holdings:** All lands or properties currently held by or for the Kingdom, including any church sites (e.g., Shiloh Baptist Church properties) or community lands, are considered the **territory of the Kingdom** for purposes of governance and jurisdiction. These lands shall be used and managed in a manner consistent with their sacred purpose and for the benefit of the community.
3. **Future Acquisition:** The Kingdom may in the future acquire additional lands through purchase, donation, inheritance, discovery of ancestral title, or recognition by governmental authorities. Any such lands, once under the Kingdom’s ownership or stewardship, shall fall under the jurisdiction of this Charter and be added to the Kingdom’s territory. The Kingdom explicitly **does not waive any aboriginal title or indigenous land rights** that may exist; instead, it holds those rights in abeyance, to be asserted at the opportune time.
4. **Land Claims and Advocacy:** The Kingdom retains the right to **pursue legal claims or legislative remedies** to secure land rights, reparations, or titles for itself or its members, especially with respect to lands that may have been unjustly taken or denied in the past. Such efforts may include petitioning for federal trust land status, pressing claims under treaties or agreements (should any be identified), or invoking statutes that benefit land recovery for indigenous peoples. Any engagements in land claims shall be carried out under the guidance of the Founder and with proper counsel, ensuring that no specific claim need be identified in this Charter so as to maintain strategic flexibility.
5. **Territorial Integrity:** Once any land becomes part of the Kingdom’s territory (whether owned outright or held in trust for the Kingdom), it shall be considered under the **sovereign protection** of the Kingdom. The Kingdom will defend its territorial integrity through all peaceful and legal means. In accordance with Article 8 of the U.N. Declaration on the Rights of Indigenous Peoples, the Kingdom and its members have the right not to be subjected to dispossession of their lands or resources . Any **unauthorized encroachment** by external entities (be they corporations, governments, or private parties) shall be firmly opposed and legally challenged by the Kingdom as a violation of its rights and this Charter.

Article VI – External Relations and Non-Interference

1. **Federal and International Law Protections:** The Apex Kingdom invokes and shall enjoy the protection of all applicable laws that safeguard indigenous sovereignty and religious freedom. This includes, without limitation:
 - The **Religious Freedom Restoration Act (RFRA)**, which prohibits the government from substantially burdening the exercise of religion without a compelling interest and narrow tailoring . In accordance with RFRA, no agency or official shall impose regulations or actions on the Kingdom or its members that significantly impair their religious practices, unless required by the most stringent legal standard.
 - The **Religious Land Use and Institutionalized Persons Act (RLUIPA)**, which **bars discrimination or undue burdens** on religious organizations in local land-use laws . Pursuant to RLUIPA, any land use or zoning decisions affecting the Kingdom's churches, properties, or gatherings must accommodate the Kingdom's religious needs absent a compelling and unavoidably necessary justification.
 - **25 C.F.R. Part 83 – Federal Acknowledgment of Indian Tribes:** The Kingdom shall conform to the extent relevant with the criteria and processes outlined in 25 C.F.R. Part 83 for recognition of an Indian tribe, including maintaining a distinct community with political influence and a clear governing document . Reference to these federal regulations in this Charter underscores the Kingdom's intent to seek official acknowledgment of its tribal status in the future, without conceding that its inherent sovereignty depends on such acknowledgment.
 - The **United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP)**, which, although not directly binding in U.S. courts, provides globally recognized standards affirming indigenous rights. The Kingdom specifically aligns itself with UNDRIP's affirmation of the right to self-government, cultural preservation, and freedom from forced assimilation , and shall interpret and apply this Charter consistent with those principles.
2. **No Waiver of Immunity or Jurisdiction:** By establishing this Charter, the Apex Kingdom does not submit to the jurisdiction of any outside court or authority, except where it explicitly chooses to do so. The Kingdom retains **sovereign immunity** from lawsuits or legal process in any forum outside its own institutions, unless the Founder (or a successor authorized under Article VIII) expressly waives such immunity in a specific instance. Any waiver of immunity must be in writing and shall be narrowly construed. In the absence of such a waiver, no external subpoena, summons, judgment, or order shall have effect upon the Kingdom or its assets.
3. **Non-Interference Clause:** It is the express will of this Charter that the Kingdom be **free from interference or control by outside entities**. No government (federal, state, or local), corporation, religious denomination, or tribal entity shall **impose its authority** on the Apex Kingdom, its governance, lands, or members, except as may be agreed to by the Kingdom itself or as required by overriding law. Any attempt by external parties to:
 - Challenge the Kingdom's lawful activities or existence,

- Seize or encumber the Kingdom's property,
 - Exercise control over the Kingdom's internal affairs or membership, or
 - Claim jurisdiction over disputes internal to the Kingdom,
- 4. shall be regarded as an **unlawful encroachment**. The Kingdom will utilize all available legal defenses (including those grounded in RLUIPA, RFRA, constitutional principles, and inherent sovereignty) to resist such encroachments. For instance, if a private corporation or another tribe were to contest the Kingdom's rights, the Kingdom would point to the firm protections in place and the **non-derogation** of its rights by any contrary claim.
- 5. **Distinct Identity:** The Apex Kingdom's identity as both a tribal nation and church is unique. The Kingdom is **not subject to any other tribal government's authority** and is **not subordinate to any external religious hierarchy**. It stands independent. Membership in Apex Kingdom does not infringe upon an individual's citizenship in any nation-state, nor does it require relinquishing membership in the Christian faith community; rather, the Kingdom serves as a complementary sovereign sphere. No other organization may deceptively use the name "Apex Kingdom" or claim to represent its people without authorization; the Kingdom will defend its corporate and spiritual identity against misrepresentation or competition that could cause confusion or undermine its mission.
- 6. **Comity and Cooperation:** Notwithstanding the above, the Kingdom may **voluntarily cooperate** with governments or organizations on matters of mutual interest. Such cooperation – for example, participating in interfaith councils, entering state compacts for law enforcement assistance, or collaborating with federal agencies on grant programs – **does not diminish** the Kingdom's rights. When engaging externally, the Kingdom does so as an equal party, **government-to-government or church-to-church**, under principles of comity and mutual respect. Any external recognition of the Kingdom's authority (such as a court's deference to an internal church decision, or a municipality's accommodation of the Kingdom's zoning needs under RLUIPA) shall be deemed to reinforce, not dilute, the Kingdom's sovereignty.

Article VII – Leadership and Succession

1. **Supreme Executive Authority:** The Founder, **Matthew McCluster**, is hereby vested with **superior executive authority** over the Apex Kingdom. He is the **Sovereign Head of State and Church** for the Kingdom, holding ultimate decision-making power in all secular, spiritual, administrative, and judicial functions of the government. The Founder shall serve as the chief executive for life, or until such time as he voluntarily relinquishes or transfers his authority pursuant to the succession provisions herein.
2. **Powers of the Founder:** The Founder's powers include, but are not limited to:
 - **Executive Powers:** Implementing and enforcing this Charter and the laws of the Kingdom; representing the Kingdom externally; managing the Kingdom's day-to-day affairs and directing all officers or agents of the Kingdom.
 - **Legislative Powers:** Issuing decrees, edicts, or executive orders that have the force of law; convening any council or assembly if one is established, and vetoing

or overriding any actions inconsistent with this Charter or his vision for the Kingdom.

- **Judicial Powers:** Acting as, or appointing, the highest judicial authority in the Kingdom. The Founder may personally adjudicate important disputes or appeals, particularly in matters of significant moral or strategic importance, thereby ensuring that justice and doctrine remain true to the Kingdom's principles.
 - **Ecclesiastical Authority:** Serving as the chief spiritual leader (e.g., highest pastor or overseer) of the Kingdom's religious community, with authority to guide theological direction, church governance, and the integration of religious tenets into the Kingdom's policies.
 - **Appointive Powers:** Appointing and removing any officers, ministers, judges, council members, or other officials within the Kingdom's governance structure at his sole discretion. All positions of responsibility within the Kingdom ultimately derive their authority from, and report to, the Founder (unless and until a successor assumes the Founder's role).
 - **Fiduciary Powers:** Serving as the principal trustee of the Kingdom's trust corpus (all assets and interests held for the members). The Founder is entrusted to manage these assets prudently for the beneficiaries, with the understanding that his stewardship is subject only to the moral obligations set forth by this Charter and divine law.
3. **Immunity and Finality:** The actions and decisions of the Founder, when made in his official capacity, shall be final and binding within the Kingdom. He shall not be subject to suit or prosecution within the Kingdom for decisions made or actions taken under this Charter, except if he himself consents or in the extraordinary instance of violation of God's law or egregious betrayal of the community (an event anticipated to be prevented by the Founder's own integrity and the accountability to divine authority).
4. **Succession Plan:** To ensure continuity of governance and vision, the Founder retains the **exclusive right to designate his successor**. The successor shall, upon the Founder's death, permanent incapacity, or abdication, assume all titles, powers, and responsibilities held by the Founder under this Charter.
- The Founder may name a successor (or an order of succession) by written instrument (such as a proclamation or will) at any time, and he may revise this designation as often as he deems necessary.
 - The successor should ideally be a person who shares the Founder's commitment to the Kingdom's mission – whether a family member, a trusted protégé, or a respected member of the Church Body – but this decision lies solely with the Founder's discretion.
 - In the event the Founder passes or becomes unable to lead **without having named a successor**, the assumption of leadership shall be handled as follows: The Kingdom's senior ministers or principal officials shall convene in prayer and council to discern an interim guardian of the Kingdom's executive functions. This interim leader (or council) shall have only such authority as needed to maintain basic operations and safeguard the Kingdom's interests, and shall promptly seek to identify or confirm a permanent successor consistent with what is known of the

Founder's wishes and the best interests of the Kingdom. Once a rightful successor is determined and affirmed by majority consensus of that council (or by a sign from the Founder's prior indications), full authority shall vest in that successor.

- Upon succession, the new leader (hereinafter "the Successor") shall wield the same sole and supreme authority as the Founder, unless this Charter is amended to provide otherwise. The title and role of "Founder" may be retired in honor of Matthew McCluster's unique position, and the Successor may assume an appropriate title (such as Chief Executive, Sovereign, or Presiding Elder) as determined at that time.
- 5. **Advisory Bodies:** The Founder (and any Successor) may, at his sole option, appoint an advisory council, cabinet, or board of elders to assist in governance. Any such bodies shall serve purely at the pleasure of the leader and can be restructured or disbanded at any time. Their role is consultative; they do not diminish the Founder's ultimate authority. The Founder values wise counsel but retains the **final say** in all decisions.
- 6. **Accountability:** While the Founder holds unparalleled authority under this Charter, it is expected that he will govern righteously and in the best interest of the Kingdom and its people, being ultimately **accountable to God** for his stewardship. This Charter enshrines his authority to prevent external meddling or dilution of leadership, but it is not intended to encourage tyranny; rather it entrusts one person with the duty to guide the community with wisdom, courage, and compassion, subject to the moral law and the judgment of history.

Article VIII – Amendments and Interpretation

1. **Power to Amend:** This Charter is intended to be a living document that can adapt as needed, yet it also serves as a bulwark of the Kingdom's fundamental principles. To balance stability with flexibility, the **sole authority to amend, modify, or repeal** any provision of this Charter resides with the Founder (or the Successor holding the Founder's authority). No amendment shall be valid unless it is put forth in writing by the Founder/Successor and clearly indicates the changes made, and is promulgated to the Kingdom's members by appropriate means. If the Founder deems it wise, he may consult the community or advisory bodies regarding potential amendments, but such consultation is not a requirement for the validity of an amendment.
2. **Limitations on Amendments:** Notwithstanding the above, the following core elements of the Charter are intended to be perpetual and not subject to removal (though they may be enhanced or clarified): the **sovereign status** of the Kingdom, the **nonprofit religious purpose**, the **beneficial interest of the members**, and the **leadership succession by the Founder's designation**. Any amendment that would substantially undermine the Kingdom's sovereignty or the Founder's lineage of leadership is presumed contrary to the spirit of this Charter and would only be considered if extraordinary circumstances demand.
3. **Interpretation:** In interpreting this Charter:

- **Liberal Construction:** As a fundamental rule, this Charter shall be **liberally construed** to fulfill its objectives of autonomy, protection of religious exercise, and the welfare of the community. Ambiguities should be resolved in the manner that **most favors the Kingdom's sovereign rights and the religious freedoms** of its members (echoing the mandate that such instruments be read in favor of broad protection of rights).
 - **Context and Purpose:** Each provision shall be read in light of the entire document and the purposes of the Kingdom. The Preamble and "Whereas" clauses express the intent behind this Charter and may be used to resolve interpretive questions.
 - **Consistency with Higher Law:** Where any provision might be construed in conflict with applicable superior law (such as the U.S. Constitution or indispensable principles of human rights), the provision should be interpreted, if possible, in a way that conforms to the higher law while still giving maximum effect to the Kingdom's intent. If an irreconcilable conflict with non-waivable law arises, that specific provision may be deemed severed or inoperative to the minimum extent necessary, without invalidating the remainder of the Charter.
 - **Original Meaning:** The original meaning of the text as understood at the time of its adoption (October 30, 2010) shall guide interpretation, except where subsequent amendment indicates a change in meaning. The Founder's interpretations or official commentary on any aspect of this Charter shall carry decisive weight.
4. **Severability:** If any clause or part of this Charter is declared unlawful or unenforceable by a court of competent jurisdiction (in a proceeding in which the Kingdom has participated or consented, consistent with Article VI), such determination shall not invalidate the rest of the Charter. The offending clause shall be modified by the Founder if possible to cure the defect; otherwise, it shall be deemed severed, and the remaining provisions shall continue in full force.
 5. **Supremacy:** This Charter is the supreme law of the Apex Kingdom. It supersedes any prior inconsistent rules, bylaws, understandings, or declarations of the Kingdom. All Kingdom laws, regulations, and actions must be consistent with this Charter. In case of conflict between this Charter and any subsidiary law or decision, this Charter prevails.

Article IX – Adoption and Effective Date

Adoption: This Charter is hereby adopted and **ratified by the Founder** on behalf of the Apex Kingdom and its people. The Founder's signature (or other official attestation) affixed to this document shall signify its immediate validity as the governing charter of the Kingdom.

Effective Date: The provisions of this Charter are declared to be effective **nunc pro tunc** (retroactively) to **October 30, 2010**, which date is acknowledged as the foundational date of the Apex Kingdom as an entity. All acts taken and offices held by the Founder and the community in furtherance of the Kingdom's existence since that date are hereby affirmed and validated under the authority of this Charter. This backdating is intended to solidify the continuity of the

Kingdom's governance and existence for purposes of historical record and any legal consideration of the Kingdom's duration.

Certification: In witness whereof, the undersigned Founder of Apex Kingdom sets his hand to this Charter, formally declaring it to be the duly promulgated Constitution and organizational document of the Apex Kingdom, with copies to be filed or distributed as necessary for legal and historical purposes (including use in court filings, official mailings, and as a foundational exhibit in petitions for recognition or in legal disputes).

Matthew McCluster

05/29/2025

[Signature]

Witness:

Stephanie Aronalo

05/29/2025

[Signature]

[Signature] 5/29/25

JOYIESHA F SMOAK
Notary Public, State of Connecticut
I.D. # SNPC 0185844
My Commission Expires 02/26/2027